

Hakim Singh Ravat v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 4 August 2022 · WRIT - C No. - 17623 of 2022 · **Writ disposed; clause 6.5 objection to be decided; coercive action stayed eight weeks.**

HEADNOTE

On a challenge to a DVVNL recovery notice, the Allahabad High Court, without expressing any opinion on merits, disposed of the writ by granting liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, to be decided in a time-bound manner after hearing, and stayed coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Hakim Singh Ravat filed a writ petition seeking certiorari to quash a recovery notice dated 11 July 2021 issued by the Executive Engineer, Dakshinanchal Electricity Distribution Corporation Limited, Electricity Distribution Division Baah, District Agra, and a mandamus restraining harassment or penal action pursuant to that notice. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-demand-objection

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer (respondent no. 2) within four weeks; if submitted, the objection shall be decided in accordance with law, expeditiously, preferably within the next four weeks, after a reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy Challenge to a recovery notice was not decided on merits; the consumer was relegated to a clause 6.5 objection before the Executive Engineer. ¶ 2

clause-6.5-statutory-remedy-disputed-bill The statutory remedy for objecting to the impugned demand was identified as paragraph 6.5 of the Supply Code, to be decided after hearing. ¶ 2

billing-objection-to-executive-engineer-under-6.5 Liberty was given to file the clause 6.5 objection before respondent no. 2 (the Executive Engineer) within four weeks, with a time-bound decision and interim protection from coercive recovery. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY NOTICE DATED 11 JULY 2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 2